

Broad Agency Announcement (BAA)
Number: FA8650-22-S-1004
Amendment 03

NAICS Code: 541715 (Research and Technology in the Physical, Engineering, and Life Sciences (except Nanotechnology and Biotechnology), and the small business size standard is 1,000 employees.

Federal Agency Name: Air Force Research Laboratory, Sensors Directorate, Spectrum Warfare Division (AFRL/RY)

Broad Agency Announcement Title: Kaiju

Broad Agency Type: This is Amendment 03 to BAA FA8650-22-S-1004 to 1) Add the full text clause language for: FAR 52.204–27, Prohibition on a ByteDance Covered Application

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Catalog of Federal Domestic Assistance (CFDA) Number: 12.800 AIR FORCE DEFENSE RESEARCH SCIENCES PROGRAM

This Amendment is to add the following:

1. Model Contract, Section I, incorporates the following clause in full text:

PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023)

(a) *Definitions.* As used in this clause—

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

(b) *Prohibition.* Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, “No TikTok on Government Devices” Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor’s employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in accordance with OMB Memorandum M-23-13.

(c) *Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

2. There are no other changes to the Broad Agency Announcement, other than this Amendment 03 for the incorporation of FAR 52.204-27 clause